

**BEFORE THE
FEDERAL MARITIME COMMISSION**

WASHINGTON, D.C.

In the Matter of:

GATOR FABRICATION TECHNOLOGY, LLC

Complainant,

v.

FMC Docket No.: 26-03

FLADOR GLOBAL LOGISTICS a/k/a

FLADOR GLOBAL ULUSLARARASI TAŞIMACILIK LOJ.DIŞTIC.LTD.ŞTI

and

NTG AIR & OCEAN, LLC,

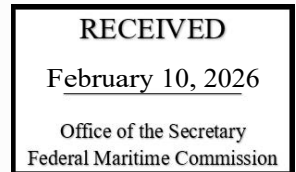
Respondents.

VERIFIED COMPLAINT

Complainant, Gator Fabrication Technology, LLC brings this complaint pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. §§ 40101 et seq. and the Commission's Rules of Practice, as states as follows:

I. INTRODUCTION

1. Complainant seeks relief from Respondents' unreasonable, unjust, and unlawful practices, including the wrongful refusal to deliver cargo, improper assertion of a maritime lien, and coercive retention of cargo to force payment of disputed and unrelated charges and unlawful retaliation, all in violation of 46 U.S.C. §§ 41102(c) and (d), 41104(a)(10) and (14).



II. PARTIES

2. Complainant, Gator Fabrication Technology, LLC is a Florida limited liability company with its principal place of business at 620 Oak Place, Port Orange, Florida 32127, reachable via e-mail at sales@gatorfabtech.com and via its undersigned counsel's telephone numbers and e-mail address below. Complainant sells industrial equipment and is a "shipper" within the meaning of the 46 U.S.C. section 40102(23).

3. Respondent, Flador Global Logistics ("Flador") is also known as Flador Global Uluslararası Taşımacılık Lojistik Ltd.Şti. Respondent Flador is located at the following address:

1476 Sok. Tibaş İş Hanı No.1 K.4 D.8
Alsancak / İZMİR – TÜRKİYE

Flador also can be reached at hasan@fladorglobal.com and +90-232-421-14-53.

Flador acted as an ocean transportation intermediary and non-vessel-operating common carrier within the meaning of 46 U.S.C. §§ 40102(17) and (20).

4. Upon information and belief, Flador does not hold a license or registration as an ocean transportation intermediary issued by the Federal Maritime Commission and is not listed as a licensed or registered NVOCC or ocean freight forwarder in the Commission's public OTI records.

5. Respondent NTG Air & Ocean, LLC ("NTG") is located at the following address:

365 Franklin Avenue
Franklin Square, New York 11010

NTG can also be reached at fda@ntgairocean.com and (516) 328-2500.

NTG is a licensed ocean transportation intermediary (License No. 018569) within the meaning of 46 U.S.C. § 40102(20).

6. Respondents Flador and NTG acted jointly in the conduct alleged herein with respect to Complainant and are joint and severally liable for damages suffered by Complainant.

III. JURISDICTION AND LEGAL AUTHORITY

7. The Commission has jurisdiction over this Complaint pursuant to the Shipping Act, 46 U.S.C. § 41301, as the acts and practices complained of herein constitute unreasonable practices relating to the delivery of property, unlawful retaliation, unreasonable refusals to deal, and unlawful detention charges within the meaning of 46 U.S.C. §§ 41102(c) and (d), 41104(a)(10) and (14).

8. The acts and practices complained of involve the transportation, handling, storage, and delivery of cargo in foreign commerce to the United States.

9. Respondents acted as ocean transportation intermediaries or agents of ocean transportation intermediaries, including NVOCCs and/or ocean freight forwarders.

10. The Commission has jurisdiction over Flador notwithstanding its lack of FMC licensure or registration because:

- a. Flador acted through a licensed ocean transportation intermediary NTG in the United States;
- b. Flador directed, controlled, or caused the acts and practices

constituting Shipping Act violations; and

c. The Shipping Act applies to any person who causes or participates in an unreasonable practice in connection with the transportation, handling, storage, or delivery of cargo in U.S. foreign commerce.

IV. MATTERS COMPLAINED OF (FACTUAL ALLEGATIONS)

15. Complainant purchased equipment in Turkiye for shipment to the United States and it retained Flador to arrange international transportation for the equipment. Flador, in turn, engaged NTG to handle U.S. customs clearance and domestic delivery.

16. The parties arranged three separate shipments.

17. The first shipment consisted of three pieces of equipment shipped in container number HLXU5647244. Complainant paid Flador \$8,000.00 for ocean freight charges. The equipment was delivered without incident.

18. The second shipment consisted of one piece of equipment, a hydraulic pipe bending machine, shipped in container number TRKU4487598. Complainant paid Flador \$3,100.00 in ocean freight charges and \$10,017.73 for customs charges.

19. The second shipment was damaged, however, resulting in substantial expense to Complainant, and so Complainant withheld payment of \$22,745.69 for customs charges related to the first shipment, which had just become due to Flador. Flador and Complainant are in a contractual dispute over the damages to the machine and Complainant's associated expenses to mitigate the damages.

20. The third shipment consisted of a plate bending machine, shipped in container number UACU2416592. Complainant paid Flador \$7,600.00 in shipping charges and \$11,541.69 in customs and other charges.

21. The third shipment cleared customs and is in NTG's possession. NTG, however, has refused to deliver it to Complainant because NTG asserts that Flador will not pay for its services related to the shipment. NTG also has asserted a wrongful maritime lien on Complainant's equipment, even though Complainant has paid all charges due for the shipment.

22. In addition, Flador and NTG have off-loaded Complainant's equipment to a warehouse, and they are charging Complainant detention charges of \$250.00 per week until Complainant pays the disputed amount related to the first and second shipments.

23. Complainant, Flador, and NTG attempted to resolve this dispute. During the discussions, counsel for Complainant advised representatives of Flador and NTG that Respondents appeared to be in violation of the Shipping Act and that Complainant was prepared to file a complaint with the FMC.

24. In response, Flador's representative doubled-down and took the position that the three shipments were actually one shipment in "three lots," and he sent a formal demand for payment of the second shipment's charges of \$22,745.69, plus an additional \$3,500.00 in storage charges and \$6,332.00 in charges purportedly incurred for transferring the cargo to the warehouse. Flador further

threatened that if these amounts were not paid within seven days, then Flador would sell Complainant's equipment.

V. VIOLATIONS

COUNT I: VIOLATION OF 46 U.S.C. § 41102(c)

25. Complainant realleges and incorporates by reference the allegations in paragraphs 1 through 24.

26. By holding Complainant's cargo hostage, charging unlawful detention fees, and asserting a wrongful maritime lien in an effort to coerce Complainant to pay charges on an unrelated shipment, Respondents have failed to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of Complainant in violation of 46 U.S.C. Section 41102(c).

COUNT II: VIOLATION OF 46 U.S.C. § 41102(d)

27. Complainant realleges and incorporates by reference the allegations in paragraphs 1 through 24.

28. Respondents have unlawfully retaliated against Complainant in response to Complainant's statement that it would be filing a complaint with the FMC in violation of 46 U.S.C. section 41102(d)(2)(B). *See* FMC Docket No. 21-15 (Statement of the Commission on Retaliation).

COUNT III: VIOLATION OF 46 U.S.C. § 41104(a)(10) and (14) and 46 C.F.R. § 545.5

29. Complainant realleges and incorporates by reference the allegations in paragraphs 1 through 24.

30. Respondents have engaged in unjust and unreasonable practices and refusal to deal or negotiate as they are charging Complainant detention fees solely for the purpose of coercing Complainant to pay unrelated charges for a different shipment, in violation of 46 U.S.C. § 41104(a)(10) and (14) and 46 C.F.R. § 545.5.

VI. CAUSATION

31. As a direct and proximate result of the violations described herein, Complainant has and continues to sustain significant and measurable harm, including detention charges, storage fees, disruption of its commercial relationships, damage to business reputation, attorney's fees and additional operational costs.

VII. REPARATIONS SOUGHT/DAMAGES

32. Complainant's damages include, but are not limited to, the loss of its equipment, the loss of its profit in the sale of the equipment to its customer, pending detention charges and storage fees, disruption of commercial relationships, damage to its business reputation, and additional operational costs.

VIII. PRAYER FOR RELIEF

33. Complainant requests that Respondents be required to answer the charges made in this Complaint and that the FMC order the following relief:

- a. An investigation pursuant to 46 U.S.C. section 41301(c) of the allegations of this Complaint;
- b. An order compelling Respondents to cease and desist from violating the Shipping Act and to put in place lawful and reasonable practices;

- c. An order compelling Respondents to release Complainant's detained cargo;
- d. An order requiring Respondents to pay Complainant reparations for the unlawful conduct alleged herein, with interest and attorney's fees, and any other sum the FMC determines to be proper in accordance with 46 U.S.C. § 41305; and
- e. Such other and further orders or relief as the FMC deems just and proper.

IX. REQUEST FOR ORAL HEARING

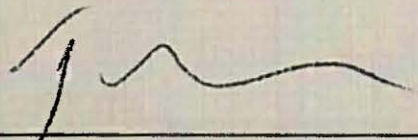
Complainant requests an oral hearing in Washington, D.C.

/s/ William J. Cook
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VERIFICATION

I, Tayfun Alptekin, am President of Gator Fabrication Technology, LLC. I have read the foregoing Verified Complaint and declare under penalty of perjury that the facts stated therein are true and correct to the best of my knowledge, information, and belief.

Executed on January 1/21/2026.



Tayfun Alptekin